

Court No. - 36

Case :- CONTEMPT APPLICATION (CIVIL) No. - 1712 of 2021

Applicant :- Ghasita Singh

Opposite Party :- Shri Raj Pal Kushwaha

Counsel for Applicant :- Om Prakash Mishra

Hon'ble Mahesh Chandra Tripathi,J.

Heard learned counsel for the applicant through video conferencing.

By order dated 23.2.2021 passed in Writ C No. 24145 of 2020 filed by the applicant, the Court directed as under:

"For the grievances raised by the petitioner with regard to the accuracy of electric bill, it would be open for him to approach the competent authority who according to the counsel for the respondents is the respondent no.3 i.e Executive Engineer Electricity Distribution Division-IIInd Mandawar District-Bijnor.

The petitioner is relegated to avail the remedy under Clause 6.5 of U.P. Electricity Supply Code, 2005.

The writ petition is, accordingly, disposed of. "

Learned counsel for the applicant submits that in response to the aforesaid order, an appropriate application under Clause 6.5 of U.P. Electricity Supply Code, 2005 has been moved by the application on 26.2.2021 before the opposite party. Thereafter, a reminder has also been sent on 8.3.2021 through registered post but till date, no decision has been taken as such the opposite party has wilfully not complied with the order.

Prima facie a case of contempt has been made out. However, considering the facts and circumstances of the case, one more opportunity is afforded to the opposite party to comply with the aforesaid order of the Court within one month from the date of production of a copy of this order.

The applicant shall supply a duly stamped registered envelope addressed to the opposite party and another self-addressed stamped envelope to the office within one week from today. The office shall send a copy of this order along with the self-addressed envelope of the applicant with a copy of contempt application to the opposite party within one week thereafter and keep a record thereof.

The opposite party shall comply with the directions of the writ

court and intimate it to the applicant through the self-addressed envelop within a week thereafter.

With the aforesaid observations, this application is **disposed of** at this stage with liberty to the applicant to move a fresh application, if the order is not complied with by the opposite party within the stipulated time as aforementioned.

The party shall file computer generated copy of such order downloaded from the official website of High Court Allahabad, self attested by the applicant alongwith a self attested identity proof of the said person (preferably Aadhar Card) mentioning the mobile number to which the said Aadhar Card is linked.

The concerned Court/Authority/Official shall verify the authenticity of such computerized copy of the order from the official website of High Court Allahabad and shall make a declaration of such verification in writing.

Order Date :- 21.6.2021

A.K.Srivastava